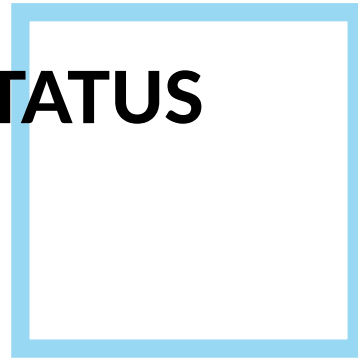


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HONG KONG BN(O) STATUS HOLDER VISA



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HONG KONG BN(O) STATUS HOLDER VISA

The Hong Kong BN(O) Status Holder Visa is an immigration route for Hong Kong British National (Overseas) citizens to live, work and study in the UK.

Applicants for a Hong Kong BN(O) Status Holder Visa may be ordinarily resident in Hong Kong or the UK. This visa route can lead to settlement in the UK.

Hong Kong BN(O) Status Holder Visa holders may be joined by a Dependent Partner (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-for-dependent-partners-of-bno-status-holders/>) and Dependent Children or Grandchildren under 18 (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-dependent-children-under-18/>) of the Hong Kong BN(O) Status Holder or their partner. In exceptional circumstances, other Adult Dependent Relatives (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-for-adult-dependant-relatives/>) with a high degree of dependency on the BN(O) or the BN(O)'s partner may also apply. Family members can be of any nationality.

Requirements for a Hong Kong BN(O) Status Holder Visa

In order to qualify for a Hong Kong BN(O) Status Holder Visa you will need to satisfy UK Visas & Immigration that:

- You are at least 18 years old;
- You are a British National (Overseas) under the Hong Kong (British Nationality) Order 1986;
- You are ordinarily resident in Hong Kong (if applying to enter the UK) or the UK, Guernsey, Jersey, the Isle of Man or Hong Kong (if applying for permission to stay)
- You are able to accommodate and support yourself in the UK for at least six months
- Your application does not fall for refusal under the general grounds for refusal;

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- You have provided a valid TB certificate, if required.

(<https://www.google.co.uk>

The exact requirements you will need to satisfy may vary depending on your individual circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Hong Kong BN(O) Status Holder Visa application with one of our immigration barristers, contact our Hong Kong BN(O) Visa lawyers on 0203 617 9173 or complete our enquiry form below.

BN(O) Status Holder Requirement

In order to qualify for a Hong Kong BN(O) Status Holder Visa you must be a British National (Overseas) (<https://immigrationbarrister.co.uk/british-nationality-law-britains-colonial-obligations-to-hong-kong/>) under the Hong Kong (British Nationality) Ordinance Order 1986.

A person who was a British Dependent Territories citizen by virtue (wholly or partly) of his having a connection with Hong Kong must have applied to be registered as a British National (Overseas) prior to the end of 1997. No person born after 30 June 1997 is a British National (Overseas). Additionally, BN(O)s cannot pass that nationality by descent to their children.

BN(O) status would only be lost in limited circumstances. A person who registered before 1 July 1997, who ceased to be a British Dependent Territories citizen before that date (for example by renouncing or being deprived of it), would automatically cease to be a British National (Overseas), per section 4(3) of The Hong Kong (British Nationality) Order 1986 (<http://www.legislation.gov.uk/ukxi/1986/948/made>). A person could also be deprived or could renounce their British National (Overseas) status, but should be aware if either of these happened.

It is possible to apply for a Hong Kong BN(O) Status Holder Visa using either a valid or expired BN(O) passport as evidence of your BN(O) status.

If your BN(O) passport has been lost, eligibility checks can be made using historical records held by Her Majesty's Passport Office.

It is also possible to apply for a Hong Kong BN(O) Status Holder Visa using a Hong Kong Special Administrative Region passport. If you do not hold a valid BN(O) passport and your Hong Kong BN(O) Status Holder Visa application is approved, you will be able to travel on a valid Hong Kong Special Administrative Region Passport.

Hong Kong BN(O) Status Holder Visa Ordinary Residence Requirement

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Applications for a Hong Kong BN(O) Status Holder Visa can be made from outside or inside the UK. <https://www.google.co.uk>

If applying from outside the UK, you must normally live in Hong Kong at the date of application.

If applying to switch into the Hong Kong BN(O) Status Holder Visa route from within the UK, you must normally live in Hong Kong, the UK, Jersey, Guernsey, or the Isle of Man on the date of application.

In determining where a person is ordinarily resident, the Home Office will consider if you have a regular habitual mode of life in a particular place for the time being, which has continued apart from temporary or occasional absences, and whether that residence is voluntary and adopted for a settled purpose. We can advise you on the evidence that can be provided to show this, depending on your particular circumstances.

Hong Kong BN(O) Status Holder Visa Financial Requirement

If applying for a Hong Kong BN(O) Status Holder Visa from outside the UK, you will need to satisfy the Home Office that you will be able to adequately maintain and accommodate yourself without recourse to public funds for at least 6 months.

If applying to switch into this route from within the UK, you will also need to satisfy the Home Office that you will be able to adequately maintain and accommodate yourself without recourse to public funds for at least 6 months. However, the financial requirement will be deemed to be met if you have already been living in the UK for at least 12 months.

The Immigration Rules set out the ways in which the financial requirement may be met. Applicants may, if required, rely on credible promises of future third party support.

Adequate maintenance is where the projected weekly income ("A"), less weekly accommodation costs ("B"), would be equal to, or more than, the amount the family would be entitled to if they were in receipt of income support or equivalent ("C"). In order to calculate whether the amount held in cash savings is sufficient, the total amount must be divided by the number of weeks of limited leave that would be granted if the application was successful ("A"). The formula for calculating adequate maintenance is the same as with weekly income: $A - B \geq C$. We can assist you with the formula and advise you as to the specified financial evidence that must be submitted.

Adequate accommodation is accommodation that is not overcrowded and does not contravene public health regulations.

Hong Kong BN(O) Status Holder Visa In-Country TB Test Requirement

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You will need to provide a valid TB test certificate if:

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- you are in the UK and applying to switch into the Hong Kong BN(O) Status Holder Visa route from within the UK; and
- you were last granted permission to enter or remain in the UK for a period of 6 months or less; and
- you were present in a country listed in Appendix T to the Immigration Rules for more than 6 months immediately before your last grant.

If the above apply then your TB test certificate must be from an approved test centre and issued within the last 6 months.

The in-country tuberculosis test requirement will be met if you provided an approved TB test certificate as part of a successful application in the last 12 months.

Duration of a Hong Kong BN(O) Status Holder Visa

If your Hong Kong BN(O) Status Holder Visa application is approved you will be able to enter or remain in the UK for a period of either 30 months or 5 years, depending on the period of leave applied for.

BN(O) Status Holder Visa Conditions

BN(O) Status Holder Visa holders have a right to work (including employment, self-employment and voluntary work) in almost any role, consistent with UK employment laws and subject to having the appropriate skills and qualifications.

Dependent children are able to attend school (if under 18) or education and training (if aged 16 to 19).

Hong Kong BN(O) Status Holder Visa Application Fee

A 30-month Hong Kong BN(O) Status Holder Visa costs £180 per person, whilst a five-year Hong Kong BN(O) Status Holder Visa costs £250 per person, both considerably lower than many other visa routes to the UK.

BN(O) citizens also need to pay the immigration health surcharge in order to receive access to the National Health Service in the UK, and they also need to demonstrate that they can support themselves and their dependents financially for at least six months in the UK.

Settlement
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To apply for settlement, Hong Kong BN(O) Status Holder Visa holders must provide evidence to demonstrate 5 continuous years of residence in the UK.

If an applicant has spent time in the UK with a different type of leave under which a person can settle, this leave can be combined with time spent in the Hong Kong BN(O) category.

Absences from the UK of up to 180 days in any 12-month period are acceptable.

To settle in the UK after 5 years, those under 65 need to satisfy the Knowledge of Language and Life in the UK requirements.

Hong Kong BN(O)'s and British Citizenship

After being settled for a year, BN(O)s can apply to register as British under section 4 of the British Nationality Act 1981, and adult dependents can naturalise

(<https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/british-citizenship-by-naturalisation/>) as British.

There are stricter residency requirements of no more than 450 days outside the UK during the 5 years prior to the date of application, and no more than 90 days outside the UK in the 12 months prior to the application.

Dependents

Hong Kong BN(O) Status Holder Visa holders may be joined by a Dependent Partner (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-for-dependent-partners-of-bno-status-holders/>) and Dependent Children and Grandchildren under 18 (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-dependent-children-under-18/>) of the Hong Kong BN(O) Status Holder or their partner. In exceptional circumstances, other Adult Dependent Relatives (<https://immigrationbarrister.co.uk/hong-kong-bno-visa-for-adult-dependant-relatives/>) may also apply. Family members can be of any nationality.

How Our Immigration Barristers Can Help Hong Kong BN(O) Status Holder Visa Applicants

The Immigration Rules contain strict requirements in terms of the documents that must be provided in support of a Hong Kong BN(O) Status Holder visa application. It can be helpful to get advice from an immigration lawyer in order to ensure that your application is professionally presented and technically correct.

Our immigration barristers and immigration lawyers work closely with BN(O) citizens and their families. Our barristers are experts in the immigration options for Hong Kong BN(O) citizens and will guide you through the complex Home Office Immigration Rules and

policies.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to investors as part of a professional and friendly service.

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WE CAN ALSO ASSIST WITH

Hong Kong BN(O) Visas for Dependent Partners of BNO Status Holders



Hong Kong BN(O) Visas for Dependent Children under 18



Hong Kong BN(O) Visas for Adult Dependant Relatives



Applications for Hong Kong BN(O) Household Member Visas



Other immigration options for non-BNOs born post-1997



Fresh applications, Administrative Reviews and Judicial Reviews for Hong Kong BN(O) Status Holders



WHAT CAN WE HELP YOU WITH?

To discuss your Hong Kong BN(O) Status Holder Visa application with one of our immigration barristers, contact our Hong Kong BN(O) Citizen Visa lawyers on 0203 617 9173 or complete our enquiry form below.

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Hong Kong BN(O) Visa for Adult Dependant Relatives

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By Stefania Patuto - Immigration Barrister

31 May 2024

The BN(O) Adult Dependant Relative visa route is for the parent, grandparent, brother, sister, son or daughter of a person of a BN(O) Status holder (or their dependent partner or household member). This...

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Changes to the Hong Kong BN(O) Visa for Adult Dependent Relatives

(<https://immigrationbarrister.co.uk/changes-to-the-hong-kong-bno-visa-for-adult-dependent-relatives/>)

By Stefania Patuto - Immigration Barrister

22 May 2024

The BN(O) Adult Dependent Relative visa route is for the parent, grandparent, brother, sister, son or daughter of a BN(O) Status holder (or their partner or household member). As outlined in our previous blog post,...

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UK Visas for Hong Kong BN(O)s and Their Family Members (Webinar)

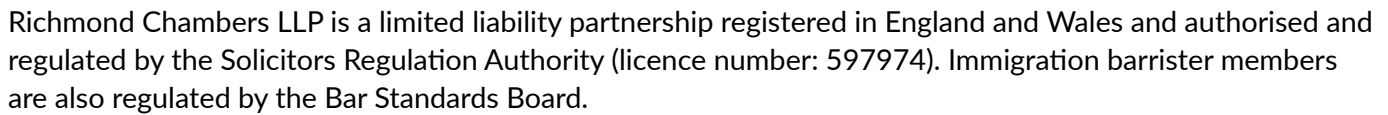
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By Richmond Chambers -

24 Apr 2023

In this webinar, first broadcast on 19 April 2023, Zarina Rahman and Stefania Patuto looked in detail at the Hong Kong BN(O) Visa route for BN(O) Status Holders and their family members. Webinar: UK Visas for Hong...

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